

# Andhra Pradesh Water, Land And Trees Rules, 2004

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State of Andhra Pradesh - Act

Andhra Pradesh Water, Land And Trees Rules, 2004

ANDHRA PRADESH

India

Andhra Pradesh Water, Land And Trees Rules, 2004

Rule ANDHRA-PRADESH-WATER-LAND-AND-TREES-RULES-2004 of 2004

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Andhra Pradesh Water, Land And Trees Rules, 2004

Published vide Notification No. G.O. Ms. No. 339. Panchayat Raj & Rural Development (R.D.-IV), dated 6.11.2004

Last Updated 18th September, 2019

No. G.O. Ms. No. 339. - In exercise of the powers conferred by sub-section (1) of Section 45 of the Andhra Pradesh Water, Land and Trees Act, 2002 (Andhra Pradesh Act No. 10 of 2002), and in super session of the rules issued in G.O. Ms. No. 224, PR & RD Dated: 15th June, 2002 the Governor of Andhra Pradesh hereby makes the following rules to promote water conservation and tree cover and to regulate the exploitation and use of ground and surface water for protection and conservation of water sources, land and matters connected therewith or incidental thereto in the State of Andhra Pradesh.

1.

Short title, extent and commencement.

(1)

These rules may be called The Andhra Pradesh Water, Land and Trees Rules, 2004.

(2)

They extend to the whole of Andhra Pradesh State.

(3)

They shall come into force from the date of publication in Andhra Pradesh Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires: -

(1)

"Act" means the Andhra Pradesh Water, Land and Trees Act, 2004.

(2)

" Authority " means the Andhra Pradesh State Water, Land and Trees Authority constituted under Section 3 of the Act;

(3)

"Member Secretary" means the member secretary of the Andhra Pradesh State Water, Land and Trees Authority:

(4)

The words and Expressions used but not defined in these rules shall have the same meaning assigned to them in the Act:

3.

Appointment of Administrator and the staff in State, District, Divisional and Mandal Authorities.

(1)

(i)

The Government may designate officers as Administrator who shall assist the Authority in discharging its duties.

(ii)

The Authority may take on deputation such other officers or members of staff subordinate to the Administrator either on contract basis or from the surplus manpower cell

(2)

The Member Secretary of the District Authority shall assist the District Authority in its work and the District Authority may take on contract basis or from the surplus manpower cell such other officers or the staff to assist the Member Secretary.

(3)

The Member Secretary of the Divisional Authority shall assist the divisional authority in its work and the Divisional authority may take on contract basis or from the surplus man power cell such other officers or the staff to assist the Member Secretary.

(4)

The Member Secretary of the Mandal Authority shall assist the Mandal Authority in its work and the Mandal Authority may take on contract basis or from the surplus man power cell such other officers or the staff to assist the Member Secretary.

(5)

The Authority under the provisions of Section 5 of the Act, may designate the officers from the departments such as Ground Water, Rural Development, Irrigation, Municipal Administration and Urban Development, Panchayat Raj, Forest or any other department or agency as deemed necessary to work as Designated or Technical Officers for the purpose of the Act by a separate order.

(6)

The power of designating the officers at District and Mandal level may be delegated by the State Authority.

4.

Term of Office of the nominated members of the Authorities.

- The term of office of the nominated members of the Authority except those nominated under clause (k) of sub-section (2) of Section 3 shall be three (3) years from the date of appointment.

5.

Resignation.

(1)

A nominated member of the Authority may resign from his office by giving thirty (30) days notice to the Chairman.

(2)

The power to accept the resignation of a member shall vest with the Chairman who on accepting the resignation shall report to the Authority during its next meeting.

(3)

Whenever a nominated member of the Authority resigns or dies or is removed from the office or becomes incapable of acting, Government may by notification in the official gazette appoint a person in the said vacancy.

Provided that a person so appointed in the said vacancy shall hold office only for the residue of the period.

6.

Removal from the Authority.

- The Government may remove any nonofficial member from his office if he is of unsound mind, or convicted of a criminal offence involving moral turpitude, or fails to attend more than three successive meetings of the Authority without prior approval of the Chairman.

7.

Allowances.

(1)

The non-official members of the Authority shall be entitled to the travelling and daily allowances as admissible to Grade-1 officers of the State for attending the meetings or any other work assigned by the Authority. They should produce a certificate that they have not claimed Travelling Allowance and Dearness Allowance for the same period elsewhere.

(2)

The Authority may designate an officer of the Authority as the controlling officer in respect of payment of allowances.

8.

District Authority.

(1)

The Government, may, by notification, in consultation with the State Authority constitute the District Authority is follows: -

(a) The District Collector

Ex-Officio Chairman

(b) One Member of Parliament and two members of the Legislative Assembly as nominated by the Government. Out of two Members of Legislative Assembly, one shall be preferably from main opposition political party.

Ex-Officio Members

(c) Three Mandal Parishad Presidents and two Zilla Parishad Territorial Constituency members to be nominated by the Ex-Officio Chairman of the District Authority.

Ex-Officio Members

(d) Joint Director, Agriculture Department

Ex-Officio Members

(e) Superintending Engineer, Irrigation Department

Ex-Officio Members

(f) Superintending Engineer, Rural Water Supply Department

Ex-Officio Members

(g) Deputy Director, Ground Water Department

Ex-Officio Members

(h) Deputy Director, Mines and Geology Department

Ex-Officio Members

(i) Deputy Conservator of Forests (Planning &

Ex-Officio Members

(j) Project Officer/Integrated Tribal  
Development Agency/ MADA / PTG

Ex-Officio Members

(k) Regional Officer, Andhra Pradesh Pollution  
Control Board

Ex-Officio Members

(1) District Panchayat Officer

Ex-Officio Members

(m) An official from Hyderabad Metropolitan  
Water Supply and Sewerage Board, in respect of Rangareddy and  
Hyderabad Districts

Ex-Officio Members

(n) Municipal Commissioner of Head Quarter  
Municipality

Ex-Officio Members

(o) Other Non Official persons not Exceeding  
five, who in the opinion of the Ex-Officio Chairman of the  
District Authority are interested in the conservation of natural  
resources of which one shall belong to Scheduled Caste, one to  
Scheduled Tribe and one shall be a woman.

Non-Official Members

(p) Director, Urban Forestry, HUDA in respect of  
Hyderabad and Rangareddy Districts.

Ex-Officio Members

(q) Project Director, Drought Prone Area  
Programmer/ District Water Management Agency.

Ex-Officio Member-Secretary.

(2)

The term of the office of Non Official Members shall be three years from the date of appointment and they are entitled to the allowances as admissible to Grade - I Officers of the State.

(3)

Resignation or removal of the members of the District Authority shall be governed in the same manner as prescribed under Rules 5 and 6 of these rules.

(4)

The quorum conduct a meeting of the District Authority shall be one third of the total number of the members.

9.

Divisional Authority.

(1)

The Government may, by notification constitute the Divisional Authority as follows: -

(a) The R.D.O. / Sub-Collector

Ex-Officio Chairman

(b) Three Mandal Parishad Presidents and Two  
Zilla Parishad Territorial Constituency members to be nominated  
by the Ex-Officio Chairman of the District Authority.

Ex-Officio Member

(c) Deputy Director of Agriculture, (having  
jurisdiction)

Ex-Officio Member

(d) Executive Engineer, Irrigation (having  
jurisdiction)

Ex-Officio Member

(e) Executive Engineer, Rural Water Supply  
(having jurisdiction)

Ex-Officio Convenor

(f) Geologist of Ground Water Dept.

Ex-Officio Member

(g) An officer from Mines and Geology Dept.

Ex-Officio Member

(h) Forest Range Officer (having jurisdiction)

Ex-Officio Member

(i) An officer from APTRANSCO

Ex-Officio Member

(j) Divisional level Panchayat Officer (having  
jurisdiction)

Ex-Officio Member

(k) Commissioner municipality (having  
jurisdiction)

Ex-Officio Member

(2)

The quorum to conduct a meeting of the Divisional Authority shall be one third of the total number of the members.  
10.

Mandal Authority.

(1)

The Government may by notification constitute the Mandal Authority as follows: -

(a) Mandal Revenue Officer of the concerned

Mandal.

Ex-Officio Chairman

(b) Mandal Development Officer.

Ex-Officio Vice-Chairman

(c) Sarpanch of the Mandal Headquarter Gram  
Panchayat.

Ex-Officio Member

(d) Two Mandal Parishad Territorial Constituency

Members of the concerned mandal to be nominated by the Ex-Officio  
Chairman of the Mandal Authority with the approval of Ex-Officio  
Chairman of the District Authority.

Ex-Officio Member

(e) Assistant Executive Engineer, Irrigation  
Department.

Ex-Officio Member

(f) An officer from Ground Water Department

Ex-Officio Member

(g) Assistant Director, Agriculture Department

Ex-Officio Member

(h) Assistant Project Director, Integrated  
Tribal Development Agency.

Ex-Officio Member

(i) Forest Section Officer (having  
jurisdiction).

Ex-Officio Member

(j) Three Non-official members of whom, one

shall be a woman, who in the opinion of the Ex-Officio Chairman of Mandal Authority are interested in conservation of natural resources or presidents of the Water Users Association or Vana Samrakshan Samithi or Watershed Association to be nominated with the approval of the Ex-Officio Chairman of the District Authority.

Non-Officio Members

(k) An official from TRANSCO having jurisdiction

Ex-Officio Member

(l) Assistant Executive Engineer, Rural Water Supply.

Ex-Officio Member-Secretary

(m) Municipal Commissioner (if mandal head quarter happens to be municipality).

Ex-Officio Member

Note. - In the Scheduled Areas, a Scheduled Tribe candidate shall be nominated. In the predominantly Scheduled Castes Mandal, one of the members shall be from Scheduled Caste.

(2)

The term of the office of Non Official Members shall be three years from the date of appointment.

(3)

The Mandal Authority shall conduct meetings atleast once in a month and perform such functions as delegated under Section , 6 and under Section 3(6) of the Act, and also other functions as directed by the Government. The Mandal Authority may utilise the services of the Designated Officers and technical officers in discharging of its functions.

(4)

The quorum to conduct meeting of the Mandal Authority shall be one third of the total number of the members.

11.

Meetings of the State, District, Divisional and Mandal Authorities.

(1)

The time, date and place of the meeting of the State, District, Divisional and Mandal Authorities shall be fixed by the Member Secretary of the respective authorities with the approval of its Chairman.

(2)

The District Authority may conduct meetings and perform such functions as delegated under Section 7 and under sub-section (6) of Section 3 of the Act and also other functions as directed by the Government and will report to the State Authority through Administrator. The District Authority may utilize the services of the Designated Officers and Technical Officers in discharging of its functions.

(3)

Seven clear days notice of an ordinary meeting and three clear days notice of a special meeting along with the agenda notes if any, shall be given by the Member Secretary to the members.

(4)

Any particular meeting may adjourn from day to day or to any particular day and no fresh notice shall be required for an adjourned meeting.

(5)

All decisions in a meeting shall be decided by a majority of votes of the members present. Voting shall be by raising of hands in favour of the proposal. In case of equality of votes the presiding officer shall have a casting vote.

(6)

The Authority may Co-opt any person as an observer for a particular meeting or period who shall have no voting rights.

12.

Registration of Wells.

- Every owner of the well shall register the well as per sub-section (2) of Section 8 of the Act by an application giving details as in Form-1 appended to these rules. The Town

Planning Department of Municipal Corporation, Municipalities Hyderabad Water Supply and Sewerage Board, Village

Secretaries of the Gram Panchayats shall facilitate registration of all existing wells in their jurisdiction. The details should be entered in a register as prescribed in Form I appended to these rules.

13.

Permission for new wells.

(1)

(i)

Any person or institution desiring to dig a new well of any kind in their premises should obtain permission by submitting to the Authority having jurisdiction over the area, an application in Form 2 and 5 as the case may be appended to these rules together with a fee as fixed by the Authority from time to time. Application duly filled in can also be given to concerned village secretary who shall pass it on to mandal authority within two days. The Authority shall process the application with the help of the Designated Officer. The Designated Officer after examining the application shall satisfy himself about the compliance of the various provisions of the Andhra Pradesh Water, Land and Trees Act, 2002 and give his recommendation to the Authority and the said Authority shall dispose off the application within fifteen days of receipt of the application. The Designated Officer while giving recommendation shall comply with the relevant provisions of the Act. Wherever necessary, the District Authority shall take the opinion of the Technical Officer of that area. Every order for permission shall be in Form 3 and 6 as the case may be appended to these rules:

(ii)

The mandal authority on receipt of application for drilling new wells in Form 2 and 5 as the case may be will refer the matter simultaneously for feasibility certificate and for power supply to respective agencies in the mandal authority and obtain the required information and dispose of the application on the basis of the reports from Andhra Pradesh Transmission Corporation (APTRANSCO) and the Ground Water department within 2 weeks. It is the responsibility of officials of APTRANSCO and Ground Water department to submit their reports to mandal authority in prescribed time. Single window approach is followed to help the people. Provided that before issuing the permission the applicant has to pay prescribed amount through a D.D. towards insurance premium, in respect of agricultural wells

(2)

The fee shall be paid through a demand draft drawn in favour of "The Andhra Pradesh Water, Land and Trees Authority Fund" payable at the Headquarters of the respective Authority.

14.

Conditions for grant of permission.

- The permission for grant of sinking of well under the Andhra Pradesh Water, Land and Trees Act, 2002 shall be subject to the following conditions, namely: -

1. that the sinking of the well should not violate any provisions of the Act.

2. that the Authority reserves its right to take such measures necessary for preservation and control of water including an order for closure of the well: and

3. that the persons sinking the well shall furnish necessary information as and when required by the Authority in such form as may be prescribed and bound by the orders of the Authority with regard to the drawing of water including imposition of condition of hours of drawing of water.

(4)

[ (i) All the bore/tube wells permitted either for agriculture/drinking purpose should be sealed properly, immediately after the process of drilling is completed. The cap should not be removed until the bore/tube well is provided with suitable pumping devices.

[Added by Notification No. G.O.Ms. No. 27, dated 24.1.2008 (w.e.f. 6.11.2004).]

(ii)

If any bore/tube well drilled either for agriculture/drinking purpose is failed/abandoned/collapsed and not sealed properly, the owner of the bore/ tube well or bore well contractor shall be penalized with a fine of Rs. 2.00 lakhs or liable for punishment under Section 304 A of the Indian Penal Code, 1860 or both, depending on the intensity of the situation.

(iii)

Stringent action shall be initiated against the concerned officials for their negligence of duties for not covering the bore well.]

15.

Taking over of well to ensure drinking water.

(1)

The Authority may by a general or special order shall authorize the Designated Officer to identify such wells as required to ensure supply of drinking water to local population and shall take over such wells.

(2)

On identification of the wells, the Designated Officer shall serve or cause to serve an order of requisition on the owner of the well specifying the period of such requisition. The Designated Officer for sufficient reasons may extend such period of requisition.

(3)

On requisition, the owner of the well shall not draw water for any other purpose other than drinking for his own use.

(4)

If the well so requisitioned is the only source of irrigation and if the owner is solely dependent on agriculture for his livelihood, the owner shall be compensated for the loss of livelihood. The quantum of compensation shall be decided by the District Collector in consultation with the agriculture department based on the crops raised during the same period in the previous three years by the owner utilizing the water from the well.

16.

Construction of Rain Water Harvesting Structures.

- The construction of the water harvesting structures in all existing and new residential, commercial, public and open areas shall be governed by the guidelines and schemes adopted by the respective urban and local bodies. They shall also be responsible for monitoring execution of the construction in accordance with the design and the scheme. The provision of Section 17 of the Act shall be followed by the Urban and Local bodies.

17.

Registration of Rigs.

- Every rig owner or an operator operating or desiring to operate in the State of Andhra Pradesh shall register the rig with the Authority by paying the prescribed fee which shall be renewable for every two years. The application shall be made in Form 15 and the permission shall be given by the Authority in Form 16. The rig owners are required to display the Form 16 at all times upon the rig. Failure to register the rig shall be an offence and shall be dealt in accordance with rules.

18.

Prohibition of water contamination.

- The Authority shall restrict, regulate and prohibit storage and disposal of effluents by any person or industry, local body or aqua culture farm into any stream or well or sewer or on land to prevent and control contamination of ground water. The Authority may pass orders suo-motu or based on representations received from public and after providing an opportunity to be heard to the affected parties and recording reasons in writing.

19.

Land use and water quality.

- The Authority may impose restrictions and prohibit any industry and carrying out of any process and operations in any area to protect water and soil quality in the area. The Authority shall provide opportunity to be heard to the affected parties before passing any order and shall record reasons in writing.

Explanation. - Power to issue orders under this rule includes power to order for, -

(i)

Shifting and closure of industry: and

(ii)

prohibition or regulation of any process or operation.

20.

Water Cess.

- The Authority may levy a cess on consumption of water and discharge of effluent by any industry, which is not covered under Schedule I of the Water Prevention and Control of Pollution Cess Act, 1977 and the amount of cess shall be as fixed by the Authority from time to time.

21.

Modification of land use.

- 1. The authority or any designated officer or agency may direct the occupier of any land that land use shall be modified

if the quality of the water coming from the land is not of acceptable quality compared to the standards prescribed by the Andhra Pradesh Pollution Control Board from time to time.

(2)

No brick manufacturing shall be taken up in areas where the soil is prone to erosion and depletion.

(3)

Wherever coal based thermal power plants are in operation, all constructions within a radius of 10 Kilo meters shall be taken up with bricks made only with fly ash.

22.

Ceiling on water use.

- Industries shall not use fresh water in excess of maximum unit of quantity specified by the Andhra Pradesh Pollution Control Board in consent orders issued under the Act, including for production - related purposes like dilution of effluents etc.. The Andhra Pradesh Pollution Control Board may impose penalty upto the maximum permissible under the Act, in each case of proven violation of the consent condition.

23.

Sand mining.

(1)

In areas where sand mining is affecting groundwater regime, such of the areas shall be notified and transportation of sand shall be prohibited and mining and transportation of sand shall be banned in notified over exploited ground water micro basins/mandals and for other areas the following conditions shall apply for exploitation of sand.

(1)

(a)

Sand mining shall not be permitted in notified areas except for local use in the Villages or towns bordering the streams. Transportation of sand from these notified areas through mechanical means out of the local jurisdiction shall be banned.

(b)

In IVth orders, stream, sand mining shall be restricted to specified areas.

(c)

In Vth order and above rivers, Viz: Godavari, Krishna, Pennar etc. Sand mining may be permitted without affecting the existing sources for Irrigation for drinking water or industrial purpose.

(2)

The sand leaseholders shall not carry out quarrying within 500 m. of any existing structure such as bridges, dams, weirs or any other cross drainage structure.

(3)

Vehicles carrying sand shall not ply over the flood banks except at crossing points or bridges or on a metal road

(4)

Permission to quarry sand shall not be granted within 500 Meters of any groundwater extraction structure(s) either for irrigation or drinking water purposes.

(5)

The streams/rivers where the thickness of sand is quite good (more than 8.00 Meters) the depth of removal may be extended to 2.00 Meters but in to case beyond two meters.

(6)

Sand quarrying shall not be permitted within 15 meters or 1/5 of the width of the stream bed from the bank whichever is more.

(7)

Sand mining shall not be permitted in streams where the thickness of sand deposition is less than 2.00 meters.

(8)

The depth of removal of sand shall be restricted to one meter particularly in minor streams where the thickness is more than 3.00 meters and less than 8.00 meters.

(9)

The sand quarrying shall be restricted to depths above the water table recorded during monsoon and in no case effect/disturb the water table.

(10)

The quantity of sand deposited annually in every stream or river shall be monitored by establishing observation stations along the stream course.

2. The Ground Water Department shall take up joint inspection along with officials of Mines and Geology Department or other concerned departments whenever cases are referred to study the impact of sand mining in an area and shall give its recommendations.

24.

Tree Planting.

(1)

In every Municipal Corporation or Municipality or other local area, the number of trees to be planted and their subsequent maintenance shall be on the following scale:

(i)

Residential areas. - Every house hold having above 100 square meters area shall plant at least small or medium variety in their premises as follows:

Below 100 Square Meters

-

3 trees

101 to 200 Square Meters

-

5 trees

201 to 300 Square Meters

-

10 trees

301 Square Meters and above

-

10 trees plus 5 trees every increase of 100

Square Meters.

(ii)

Commercial or institutional areas: Commercial establishments shall plan trees as follows: -

Plot Area

No of trees

(1)

(2)

Below 200 Square Meters

2

201 to 500 Square Meters

4

501 to 1000 Square Meters

6

Above 1001 Square Meters

6 Trees plus 2 trees for every increase of 100

Square Meters.

In addition commercial or institutional areas shall be landscaped instead of leaving them without any vegetation,

(iii)

Industrial areas: In Industrial areas trees shall be planted as per the norms of the Andhra Pradesh Pollution Control Board.

(2)

The local authority having jurisdiction shall grant building permission subject to the condition that the owner shall plant prescribed number of trees.

(3)

The owner of the premises or house shall maintain the trees and shall not fell the tree without the prior permission of the Designated Officer.

(4)

If any owner desires to fell a tree, he shall apply in writing to the Designated Officer for permission in Form 13 with a fee per tree as indicated below in that behalf. The application shall be accompanied by a site plan indicating the position of the tree required to be felled and the reasons therefor.

(i)

For urban residential Rs. 50/-and Industrial areas

(ii)

For urban Commercial Rs. 100/-Areas

(5)

On receipt of such application, the Designated Officer or an officer authorized by him, may, after inspecting the trees and holding such enquiry, as he deems necessary either grant or refuse the permission applied for in Form 14.

Provided that permission shall not be refused, if the tree: -

(i)

Is dead, diseased or wind fallen or

(ii)

has silviculturally matured, or

(iii)

constitutes a danger to life or property: or

(iv)

is substantially damaged or destroyed by fire, lightening, rain or other natural causes.

Provided further that, if the tree permitted to be felled is not exempted from purview of Forest Produce Transit rules, the Designated Officer shall inform the concerned Divisional Forest Officer for grant of transit permit and the owner shall not transport felled material without a valid permit.

(6)

The Designated Officer shall dispose the application within fifteen days from the date of receipt of application by him.

(7)

The permission to fell a tree may be granted subject to the condition that the owner of the premises shall plant another two trees of the same or suitable species on the same site or other suitable place, within thirty days from the date of tree is felled.

(8)

(a)

If, in the opinion of the Designated Officer, the number of trees in any premises or open area is not adequate according to the standards prescribed in clauses (i) and (ii) of sub-rule (4) above, he may after giving reasonable opportunity of being heard to the owner or occupier of the land, by order, require him to plant such trees or additional trees and at such places in the land as may be specified in the order.

(b)

When an order is so made, the owner or occupier of the land shall comply with the order within ninety days from the date of its receipt.

(9)

(a)

Where any tree has fallen or destroyed by fire, lightening or rain or other natural causes, the Designated Officer may suo motu or on information given to him, after holding such enquiry as he deems fit and giving a reasonable opportunity to the owner or occupier of the land where the tree existed, by order, require such owner or occupier to plant a tree in place of the tree so felled or destroyed at the same or other suitable place as may be specified in the order.

(b)

When an order is so made, the owner or occupier of the land shall comply with the order within ninety days from the date of its receipt.

(10)

When the owner or occupier of any land fails to comply with any order made by the Designated Officer, the Designated Officer shall take necessary action for planting the trees and recover the expenditure incurred thereon as arrears of property tax.

(11)

30% of the available open area in the premises of institutions shall be taken up for tree plantation with a density of not less than 6 trees per every 100 Square meters in open area.

25.

Dealing with the cases of offences.

(1)

Any violation of the provisions of the Act and these rules shall be booked in the offence report given in Form 7 appended to these rules. A copy of the offence report shall also be submitted to the District Authority immediately. In case the offender is to be prosecuted, a copy of the offence report shall also be submitted to the nearest Magistrate having jurisdiction.

(2)

Where an offence is committed, the Designated Officer may seize any instrument or machinery or any other device, vehicles or other conveyance or any other movable property used in or involved in committing such offence. A list of seizures shall be furnished to the owner of the property in Form 8 appended to these rules.

(3)

Where the seizures have to be given to the safe custody of any person it shall be in the Form 9 appended to these rules with a direction to produce the property before the Designated Officer or the Court as and when required.

26.

Penalties.

(1)

Whoever contravenes any of the provisions of this Act shall be punishable with fine which shall not be less than Rs. 1000/- but which may extend to Rs. 5000/-.

(2)

For felling of trees without prior permission, shall be punishable with a fine which shall not be less than two times the value of such tree, but which may extend up to 5 times of the value of such tree.

27.

Compounding of offence.

(1)

The authority or the designated officer or any officer authorized by the government in this regard, as the case may be may accept from any person who committed or who is reasonably suspected of having committed an offence punishable under this Act other than the offence punishable under sub-section (2) of Section 35 of this Act.

I. A sum of money not less than Rs. 1 lakh by way of compounding of the offence shall be levied in respect of contravention of Section 10, 14 and Section 27.

II. The order should be communicated in Form 10 appended to this rules and furnish a copy of the compounding order to the offender and submit another copy to the District authority.

(2)

When the compounding fees levied and paid by the offender a receipt in Form 11 appended to these rules shall be issued to a person paying the compounding fee.

28.

Confiscation of property.

- Where the authorised officer, based on the gravity of the offence, do not agree for compounding of offence the authorized officer may order for confiscation of seizures produced before him under Section 38 of the Act duly following the procedure laid down therein.

29.

Appeals.

(1)

Any person aggrieved by any order made by the Designated Officer may appeal to the District Authority within a period of thirty days from the date of receipt of the order by him.

(2)

Any person aggrieved by any order made by the District Authority may appeal to the State Authority within thirty days from the date of receipt of the order by him.

(3)

On receipt of the Appeal, the District Authority or the State Authority shall after giving a reasonable opportunity of being heard, may pass such order as it may deems fit.

(4)

The decision of the State Authority shall be final and binding.

30.

Review.

- An application for review by the Government shall be made to the concerned Secretary as the case may be, of the concerned department who shall dispose off the application with in a period of thirty (30) days after giving a reasonable opportunity of being heard to the aggrieved party.

31.

Andhra Pradesh Water, Land and Trees Authority Fund.

(1)

Constitution of the Fund: All monies received by the Mandal, District or State Authority shall be credited to the respective Authority. The remittances to the Mandal, District or State Authority shall be made by way of cash or demand draft in a Government account to be operated jointly or Member Secretary and the Chairman of the Authority.

(2)

Control of the Fund: The Member Secretary of the District or State Authority shall operate the Fund after obtaining the approval of the Chairman.

(3)

Accounts and Audit: (a) The District and State Authority shall maintain monthly accounts of receipts and expenditure.

(b)

The Mandal and District Authority shall furnish an abstract of monthly receipts and expenditure to the State Authority in Form 12 appended to these rules.

(c)

The State Authority shall furnish to the Government a consolidated statement of receipts and expenditure once for every year in Form 12.

(4)

Budget estimates. - (a) The District Authority shall on or before the 30th day of September every year prepare annual budget estimate in respect of the ensuing financial year of the estimated income and expenditure and submit to the State Authority, in the format as prescribed in budget manual.

(b)

The State Authority shall on or before 31st day of October every year prepare annual budget estimate in respect of the ensuing financial year of the estimated income and expenditure and submit to the Government for incorporating in the State Budget in the format as prescribed in budget manual.

32.

Annual Report.

- The Annual Report of the Authority shall give true and full account of the activities in that year and shall be prepared in the format prescribed by the Government and submitted by the due date.

Form - I

(see Rule 12)

Registration of Wells

Sl.No.

Name of the Well Owner

Address

Location: House/Plot Numbers, S.No.

Type of Well: Open/Bore Well and Hand Pump/ Motor

Diameter, Depth

(1)

(2)

(3)

(4)

(5)

Use of Water Domestic/ Irrigation (agricultural)

/ industrial / other

Depth of the Well

Water output in liters/hours

Whether pumping is

done using motor. If so, details:

1. Hp of the pump

2. Type of motor used: submersible / jet /  
compressor/ centrifugal / turbine

If used for irrigation state acreage irrigated:

(6)

(7)

(8)

(9)

(10)

Acknowledgement

Application for registration of existing wells is received in this office along with registration fee of  
Rs.....through a D.D. No..... Dated:..... The well has been registered in this office.

Place:

Signature of Designated Officer

Date:

Water, Land and Tree Authority

(with seal)

Form - 2

(see Rule 13)

Application for digging a new well for agricultural & drinking water purposes

1. Name of the Applicant:

2. Address:

House No.:

Street

Village/Town

Mandal

District

3. Location of proposed well: S.

No...../ Village.....

4. Type well to be dug: Open / Bore Well / Hand  
Pump

5. Mode of drawing water: Diesel Engine /  
Electric Motor

6. Specification of pump

7. Details of payment of

1) Survey charges Rs.\_\_\_\_\_ D.D. No.....

Date..... Bank.....

8. Distance from existing functional well

I hereby declare that the above particulars are  
true to the best of my knowledge and belief.

Date :

Signature

..... Cut Here.....

Order of the Designated Officer:

Your application for digging a new well in Sy. No..... of village/municipality.....is not approved.

Reasons for not approval.

- i. AP TRANSCO expressed its inability to provide power connection.
- ii. Rejection by G.W.D. (Survey report of geologist is enclosed).

Signature of the applicant.

Note: Please (?) the appropriate reason

..... Cut Here.....

Acknowledgement

An application for digging new well for agriculture / drinking purpose is received in this office along with an application fee of Rs ..... through D.D.No..... Dated:..... from Sri ..... resident of (.....)

Place:

Signature of Designated Officer

Date:

Water, Land and Tree Authority

(with seal)

Form - 3

(see Rule 13)

Permission for digging a Agricultural well / Drinking water well

Sri ..... of..... (Address) is permitted to dig a new well at ..... (location) to a depth of..... meters for drawing water for Irrigation use, subject to the following conditions: -

(1)

The well should not be used for drawing water for any other purpose other than applied for.

(2)

The withdrawal of water should be regulated, and no wastage of water should be done.

(3)

The utilized water should be recycled as prescribed for recharging the ground water.

(4)

Structures should be constructed for harvesting rainwater in the vicinity of the well. (mandatory in case the proposed well falls in area declared as Over Exploited Area)

(5)

The utilization of water will be subject to the regulation from time to time based on the extraction water from the well.

(6)

The borewell is insured for a sum of Rs wide the insurance master policy No.....The applicant has paid the premium amount of Rs.....by D.D. No.....

Note: Geologist report including site plan is enclosed.

Place:

Signature of Designated Officer

Date:

Water, Land and Tree Authority

(with seal)

Form - 4

Rejection Order of the Designated Officer

Your application for digging a new well for agriculture / drinking water purpose in Sy. No.....village.....is hereby rejection.

Reasons for rejection

(1)

AP TRANSCO expressed inability for power connection.

(2)

Rejection by Ground Water Department (survey report of geologist is enclosed)

Place:

Signature of Designated Officer

Date:

Water, Land and Tree Authority

(with seal)

Form - 5

(see Rule 13)

Application for digging a new well for Industrial / other use

1. Name of the Applicant:

2. Address of the Applicant:

3. Location of proposed well:

4. Type well to be dug: Open / Bore Well / Hand

Pump

5. Mode of drawing water: Diesel Engine /

Electric Motor

6. Specifications of Pump

7. Details of payment of

1) Survey Charges Rs ?..... D.D. No.....

Date.;.....

Bank.....

I hereby declare that the above particulars are

true to the best of my knowledge and belief.

Place:

Date:

Signature of the applicant.

.....cut here.....

Acknowledgement

An application for digging new well for Industrial purpose is received in this office along with an application fee of Rs..... through D.D. No..... Dated :..... from Sri ..... resident of (.....)

Place:

Signature of Designated Officer

Date:

Water, Land and Tree Authority

(with seal)

Form - 6

(see Rule 13)

Permission for digging a well for Industrial / Other use

Sri..... of ..... (Address) is permitted to dig a new well at.....(location) to a depth of .....meters for drawing water for Industrial/ Other use, subject to the following conditions: -

(1)

The well should not be used for drawing water for any other purpose other than applied for.

(2)

The withdrawal of water should be regulated, and no wastage of water should be done

(3)

The utilized water should be recycled as prescribed for recharging the ground water.

(4)

Structures should be constructed for harvesting rainwater in the vicinity of the well, (mandatory in case the proposed well falls in area declared as over Exploited Area)

(5)

The utilization of water will be subject to the regulation from time to time based on the extraction water from the well.

(6)

Case should be taken not to pollute the surrounding areas.

Place:

Signature of Designated Officer

Date:

Water, Land and Tree Authority

(with seal)

Form - 6A

Rejection Order of the Designated Officer

Your application for digging -a new bore well for Industrial purpose in village / Town .....is hereby rejected.

Reasons for rejection

(1)

AP TRANSCO expressed inability for power connection.

(2)

Rejection by Ground Water Department (survey report of geologist is enclosed)

(3)

Other reasons please specify

Place:

Signature of Designated Officer

Date:

Water, Land and Tree Authority

(with seal)

Form - 7

(see Rule 25)

Offence Report

1. Name,

parentage and address of the accused person

:

2. Nature of person

:

3. Place where offence occurred

:

4. Date and time of detection of offence

:

5. Name and address of the Complainant

:

6. Description of vehicles, tools etc. used in committing the offence

:

7. Name and Address of witnesses

:

8. Punishable under Section.....

of Andhra Pradesh Water, Land and Trees Act.

:

Place:

Date:

Signature of Designated Officer

Note: The original to be sent to the District Authority immediately and the duplicate copy to be given to offender and the

triplicate to be retained in the book.

Form - 8

(see rule 25)

List of Seizures

The following properties involved in the

commission of offence are seized by me today

i.e..... in connection with an offence under

Section..... under the Andhra Pradesh Water, Land and Trees

Act, 2002 from Sri

.....S/o.....

Aged.....R/o.....

1.

2.

3.

4.

Date:

Name:

Place:

Signature of Designated Officer

Note:The original shall be retained in the book

and the duplicate shall be given to the custodian of the property

seized.

Form - 9

(see Rule 25)

Certificate of Safe Custody

The following properties involved in offence are

No.....dated..... are given in my

custody by ..... (name and

designation) on.....for safe custody.

I undertake to safeguard from damage and loss

and produce the same on demand by the Designated Officer or the

Court.

Details of the properties taken over.

1.

2.

3.

4. etc.

Signature of the

Signature of custodian.

Designating Officer

Name :

Date:

Father's name :

Address :

Form - 10

(see Rule 27)

(Compounding Order)

Sri..... S/o..... Aged..... R/o..... has committed an offence against the provisions of the Andhra Pradesh Water, Land and Trees, 2002 and rules made thereunder. An offence case is booked vide Case No.....dated .....under Section.....of the Andhra Pradesh Water, Land and Trees Act, 2002.

In view of the willingness expressed by the accused, I hereby order that a sum of Rs...../- be paid towards compensation.

On payment of the compensation amount in full, the seizures detailed hereunder shall be released.

Details of Seizures:

- 1.
- 2.
- 3.
4. etc.

If the compensation amount is not paid in full within thirty days from the date of receipt of this Order, action to recover the same will be taken as if it were arrears of land revenue.

Appeal against these Orders, lies to the District Authority within thirty days of receipt of these orders.

Date:

Designated officer

Place:

(Name and Designation)

To

Sri.....

H.No.....

Street.....

Village/Town.....

District.....

Pin Code.....

Copy submitted to District Authority for information.

Form - 11

(see Rule 27)

Receipt for Compounding Fee

Received Rs..... /- (in words..... ) from Sri..... S/o..... R/o..... towards compounding fee for composition of offence in case No dated.....

The compounding fee is received in full / part.

The balance compounding fee shall be paid in thirty days failing which action shall be initiated to recover the same as arrears of land revenue.

Date:

Designated officer

Place:

(Name and Designation)

Form - 12

(see Rule 31)

Abstract of Accounts

District.....

for the month / year of.....

1. Compounding fee

Sl.No.

Nature of receipt

Amount received

Nature of Expenditure

Amount of expenditure

Balance

(1)

(2)

- (3)
- (4)
- (5)
- (6)

- 2. Registration of new wells
- 3. Registration fee of rigs
- 4. Grant by Government
- 5. Any other Receipts (please specify)

Form - 13

(see Rule 24)

Application for permission for Felling Trees

I, Sri ..... S/O..... Aged..... R/o.....(Address) request you to please permit to fell the following tree / trees in my premises.

1. Category of Premises

(a)

Residential

(b)

Industrial

(c)

Commercial

(d)

Agriculture

(e)

Industrial

(f)

Others-specify

2. Area of the premises:

3. Number of trees existing in the premises:

4. No. of trees proposed to be felled.:

5. Species of the trees proposed to be felled:

6. Age of the tree proposed to be felled:

7. Reason for proposing to feel the tree/trees:

I undertake that I shall replant immediately a tree / trees in place of the trees felled

8. Details of the D.D.

Place:

Date:

Signature of the applicant

Form - 14

(see Rule 24)

Permission for felling tree / trees

Sri..... S/o..... Aged..... R/o..... is permitted to cut tree / trees in the premises.....subject to the following conditions, namely: -

1. Premises of felling tree / trees is as mentioned above only.

2. Number of tree / trees permitted to be felled is.....only (specify species and Number)

3.

.....No. of plants shall be planted within 30 days of the felling.

4. Felling shall not be carried out before inspection, banding with red paint by the concerned officials.

5. In case of failure to take up plantation, plants shall be raised at the cost of the applicant.

Place:

Signature of Designated Officer

Date:

Water, Land and Tree Authority  
(with seal)

Form - 15

(see Rule 17)

Application for Registration of Drilling Rigs / Hand boring sets

1. Name of the applicant:

2. Address:

House No. :

Street:

Village/ Town:

Mandal

District

3. Registration No. of the vehicle:

4. Place of registration with RTO:

5. Description of the drilling rig

6. Capacity of Drilling

Max Diameter

Depth

7. Area of operation

8. Registration fee of Rs... enclosed

Draft No.:

Date

Bank

Signature

(For office use only)

Registered for the years

Registration No.

Designated

Officer

(with Seal)

Form - 16

(see Rule 17)

Registration of Rigs / Hand boring sets

The vehicle bearing number/hand boring set..... belonging to  
Sri.....of.....(Address) is registered with the Water, Land and Trees Authority of Andhra Pradesh as  
a rig / hand boring set for operation with in the territorial area of Andhra Pradesh.

This registration is valid up to.....

This registration does not convey any endorsement of the vehicle for its performance and does not amount to  
recommendation for employing the rig but only conveys that the rig / hand boring set is permitted to operate with in the  
territorial jurisdiction of Andhra Pradesh State subject to all other conditions as per the law and rules in force.

The rig shall not be used for drilling of borewells without the valid permission under APWALTA. Failing which it is liable  
for confiscation.

Place:

Designated Officer

Date:

Water, Land and Tree Authority

(with seal)

Related AI tags, queries and research notes

Translation